EMERGENCY SURGICAL CONSENT FORM

Department of Surgery | All India Institute of Medical Sciences, New Delhi

Conforms to: NMC Guidelines 2020 | Clinical Establishments (Registration & Regulation) Act, 2010 | Consumer Protection Act, 2019

IMPORTANT NOTICE TO PATIENT AND FAMILY

This document is a legal record of your informed consent to surgical treatment. Please read every section carefully. If any part is unclear, you have the right to ask for an explanation in a language you understand before signing. No surgical procedure will be commenced without valid consent except in situations of immediate life-threatening emergency where you are unable to communicate.

SECTION 1: PATIENT IDENTIFICATION DETAILS

Full Name of Patient	Date of Birth	Age

Gender	Blood Group	Religion / Community

UHID / MRD Number	IP Admission Number	Ward / Bed Number

Date of Admission	Time of Admission	Admitting Department

Permanent Address	City / District	State

Mobile Number	Alternate Contact Number

Identification Document (Aadhaar / PAN / Voter ID / Passport): Type: _____ Number: _____

SECTION 2: NEXT OF KIN / LEGAL GUARDIAN DETAILS

To be completed in all cases. In the event of emergency where the patient is unable to consent, this person's signature shall be obtained.

Full Name of Guardian / Next of Kin	Relationship to Patient

Contact Number	Address	Identification Document Number
_____	_____	_____

Reason patient unable to self-consent (if applicable):

Unconscious / Sedated	Minor (Age below 18 years)	Mental incapacity (attach certificate)
_____	_____	_____

SECTION 3: DIAGNOSIS AND CLINICAL INFORMATION

To be completed by the treating consultant/surgeon.

Primary Diagnosis _____ ICD-10 Code _____

Secondary Diagnosis / Co-morbidities _____ Duration of Illness _____

Presenting Complaints and Relevant Clinical History:

Relevant Investigations (Pathology / Radiology) _____ Date of Last Investigation _____

ASA Physical Status Grade _____ Emergency / Elective _____ Planned OT Date & Time _____

SECTION 4: PROPOSED SURGICAL PROCEDURE

Full Name of Surgical Procedure _____ Operative Code (ICD-9-CM / SNOMED) _____

Site of Operation _____ Laterality (Left / Right / Bilateral / NA) _____

Consulting Surgeon _____ MCI / NMC Registration No. _____

Operating Surgeon (if different) _____ NMC Registration No. _____

Resident / Assistant Surgeon _____ Anaesthesiologist Assigned _____

Purpose and Expected Benefit of the Procedure (as explained to patient):

Alternative Treatments Discussed (including conservative management, non-surgical options):

Consequence of Refusing Surgery:

_____

SECTION 5: RISKS, COMPLICATIONS AND LIMITATIONS OF THE PROCEDURE

I acknowledge that the surgeon has explained the following risks to me. These risks are not exhaustive and additional complications may arise. I understand that the occurrence of any complication does not imply negligence.

5.1 General Risks Common to All Surgical Procedures

- ☐ Haemorrhage (bleeding during or after surgery) requiring blood transfusion, re-operation, or, in severe cases, causing death
- ☐ Surgical site infection — superficial wound infection, deep wound infection, or organ/space infection — potentially requiring prolonged antibiotic therapy or repeat surgery
- ☐ Deep Vein Thrombosis (DVT) and Pulmonary Embolism (PE): formation of blood clots in the deep veins of the legs, which may travel to the lungs; risk of death
- ☐ Adverse drug reactions or drug interactions including anaphylaxis, which can be life-threatening
- ☐ Injury to adjacent structures including nerves, blood vessels, bowel, bladder, ureter, bile duct, or other organs
- ☐ Respiratory complications: pneumonia, aspiration, respiratory failure, requirement for mechanical ventilation
- ☐ Cardiac complications: myocardial infarction (heart attack), arrhythmias, cardiac arrest
- ☐ Cerebrovascular accident (stroke) — temporary or permanent neurological deficit
- ☐ Pressure sores from prolonged immobility on the operation table
- ☐ Complications from urinary catheterization: urinary tract infection, urethral injury
- ☐ Keloid or hypertrophic scar formation
- ☐ Hernia at the incision site (incisional hernia)
- ☐ Death — in rare but recognised circumstances, surgical procedures can result in the patient's death

5.2 Anaesthesia-Specific Risks

- ☐ Failure of anaesthesia leading to awareness during surgery (rare)
- ☐ Dental or lip injury during intubation
- ☐ Sore throat, hoarseness, or laryngeal injury
- ☐ Post-operative nausea and vomiting (PONV)
- ☐ Nerve damage causing temporary or permanent numbness, weakness, or pain
- ☐ Malignant hyperthermia — a rare but potentially fatal reaction to general anaesthesia
- ☐ Post-dural puncture headache (in spinal/epidural anaesthesia)
- ☐ Spinal cord injury with partial or complete paralysis (rare, in regional anaesthesia)
- ☐ Airway complications including laryngospasm, bronchospasm, failed intubation
- ☐ Hypoxia (low oxygen) and brain damage in rare severe cases

5.3 Blood Transfusion Risks

- Transfusion reactions: febrile non-haemolytic reactions, allergic reactions, acute haemolytic transfusion reaction
- Transfusion-transmitted infections: HIV (risk approximately 1 in 2,000,000 units), Hepatitis B (1 in 100,000–200,000 units), Hepatitis C (1 in 1,000,000 units), Malaria, CMV
- Transfusion-associated circulatory overload (TACO) and Transfusion-Related Acute Lung Injury (TRALI)
- Iron overload with multiple transfusions

5.4 Procedure-Specific Risks

(To be completed by the operating surgeon for the specific procedure planned):

SECTION 6: CONSENT FOR ANAESTHESIA

A separate pre-anaesthesia evaluation must be performed. This section documents the patient's consent to anaesthesia.

Type of Anaesthesia Planned	Anaesthesiologist Name	NMC Registration No.
_____	_____	_____

Type of Anaesthesia: [ ] General [ ] Spinal [ ] Epidural [ ] Regional Block [ ] Local [ ] Monitored Sedation [ ] Combined

I hereby consent to the administration of the anaesthetic and to the use of such additional or alternative anaesthetic techniques as may be deemed necessary by the anaesthesiologist during the course of the procedure. I have been informed of the risks of anaesthesia including those listed in Section 5.2 above.

I confirm that I have disclosed to the anaesthesiologist: all current medications I am taking (including herbal/Ayurvedic preparations), known drug allergies, previous anaesthetic history and any complications, personal or family history of adverse reactions to anaesthesia, history of smoking, alcohol, or substance use, and any medical conditions including cardiac, pulmonary, hepatic, or renal disease.

Pre-Anaesthesia Assessment Completed: [ ] Yes [ ] No Date: _____ Clearance Grade: _____

SECTION 7: CONSENT FOR BLOOD AND BLOOD PRODUCTS TRANSFUSION

Blood transfusion may be necessary during or after surgery. The risks have been explained in Section 5.3. In an emergency situation, blood transfusion may be required immediately to save life.

[ ] I consent to the transfusion of blood and/or blood products (packed red blood cells, fresh frozen plasma, platelets, cryoprecipitate, albumin) as deemed medically necessary by the treating team.

[ ] I REFUSE blood transfusion on the following grounds (reason must be documented and witnessed):

Reason for Refusal	Witness to Refusal	Date & Time
_____	_____	_____

If you refuse blood transfusion, please acknowledge: I understand that refusal of blood transfusion may result in serious complications including brain damage and death, and I absolve AIIMS, New Delhi and its medical staff of all liability arising from such refusal.

Religious/Cultural Restrictions on Blood Products (if any):
_____

SECTION 8: CONSENT FOR USE OF IMPLANTS AND MEDICAL DEVICES

[ ] Not applicable to this procedure

[ ] Implant / Device required (complete below):

Name of Implant / Device	Manufacturer	Catalogue / Lot Number

I consent to the insertion of the above implant/device. I have been informed of: the nature of the implant, its expected benefits, the risks of implant failure or rejection, the possibility of revision surgery, implant recall procedures, and my right to receive a device implant card. I understand that AIIMS, New Delhi complies with the Medical Device Rules, 2017 (Government of India) in procuring and using only approved implants.

SECTION 9: CONSENT FOR TISSUE, ORGAN, AND SPECIMEN USE

Any tissue or organ removed during your operation will be sent for histopathological examination as part of your diagnosis and treatment. The following additional uses may apply with your permission:

[ ] I consent to the use of excised tissue/specimens for histopathological diagnosis and reporting (mandatory).

[ ] I consent to the use of residual tissue specimens for de-identified academic research at AIIMS, New Delhi in accordance with the ICMR National Ethical Guidelines for Biomedical and Health Research Involving Human Participants, 2017.

[ ] I consent to photography/video recording of the procedure for de-identified medical education and academic purposes only.

[ ] I withhold consent for any use of tissue/specimens beyond diagnosis.

SECTION 10: DECLARATION REGARDING TEACHING HOSPITAL PARTICIPATION

AIIMS, New Delhi is a premier medical education and research institution recognised under the AIIMS Act, 1956. As part of delivering healthcare, supervised medical students, residents, and fellows may participate in your care. This occurs under direct supervision of your treating consultant at all times.

[ ] I understand and accept that supervised medical students, postgraduate residents, and fellows of AIIMS may be present during or participate in aspects of my surgical procedure under direct consultant supervision.

[ ] I request that only the named consultant surgeon and no trainees perform operative steps of my procedure.

SECTION 11: LEGAL DECLARATIONS AND PATIENT RIGHTS

11.1 Statutory Rights of the Patient (Clinical Establishments Act, 2010 and NMC Code of Medical Ethics)

1. Right to receive treatment in any emergency regardless of financial status or inability to pay (Section 12, Clinical Establishments Act, 2010).
2. Right to be informed about your health condition, proposed treatment, likely outcome, and alternatives in a language you understand, before and after any procedure.
3. Right to give or refuse informed consent, or to withdraw consent at any time prior to commencement of the procedure.
4. Right to seek a second medical opinion from any other registered medical practitioner.
5. Right to privacy and confidentiality of your medical information, except as required by law.
6. Right to access your medical records within 24 hours of a written request under Rule 3.1.1 of the MCI Professional Conduct, Etiquette and Ethics Regulations, 2002 (as continued under NMC Act, 2020).
7. Right to a dignified death and end-of-life care consistent with your wishes and the Supreme Court ruling in Common Cause v. Union of India (2018) 5 SCC 1.

11.2 Nature and Effect of this Consent Form

This consent form is executed pursuant to and in conformity with the following applicable laws and regulations of the Republic of India:

- National Medical Commission Act, 2020 and NMC (Professional Conduct) Regulations
- Clinical Establishments (Registration and Regulation) Act, 2010
- Consumer Protection Act, 2019 — medical services are included within the definition of 'service' as affirmed in Indian Medical Association v. V.P. Shantha (1995) 6 SCC 651
- Mental Healthcare Act, 2017 — provisions applicable to consent by persons with mental illness
- Indian Contract Act, 1872 — governing voluntariness and capacity to contract
- Protection of Children from Sexual Offences (POCSO) Act, 2012 — pertaining to minor patients
- Personal Data Protection Bill (applicable provisions) and AIIMS Privacy Policy regarding medical records
- Transplantation of Human Organs and Tissues Act, 1994 — where organ issues are relevant

This consent is subject to the principle of volenti non fit injuria (to one who consents, no injury is done) to the extent recognised under Indian law and judicial precedent, including the Supreme Court's observations in Samira Kohli v. Dr. Prabha Manchanda (2008) 2 SCC 1, which mandated real and adequate informed consent in medical procedures.

The consent given herein is not a waiver of any right to file a complaint before the NMC, State Medical Council, National Consumer Disputes Redressal Commission, or any court of competent jurisdiction in the event of medical negligence as defined in Jacob Mathew v. State of Punjab (2005) 6 SCC 1 (requiring proof of Bolam standard: departure from accepted standard of care by a reasonable body of medical practitioners).

SECTION 12: ADVANCE MEDICAL DIRECTIVE / LIVING WILL (OPTIONAL)

Pursuant to the Supreme Court of India judgment in Common Cause v. Union of India (2018) 5 SCC 1, a patient of sound mind may execute an Advance Directive regarding end-of-life treatment. This section is optional.

[ ] I have a valid Advance Directive / Living Will (attach a copy to this form).
[ ] I wish to execute an Advance Directive herewith (attach separate document).
[ ] I do not wish to execute an Advance Directive at this time.

In the event of cardiac or respiratory arrest or irreversible brain damage, please indicate your wishes:

[ ] Cardiopulmonary Resuscitation (CPR): [ ] Attempt CPR [ ] Do Not Attempt Resuscitation (DNAR)
[ ] Mechanical Ventilation: [ ] Consent [ ] Decline if condition is irreversible
[ ] Artificial Nutrition / Hydration: [ ] Consent [ ] Decline if condition is irreversible

DNAR orders must be separately documented and countersigned by the Head of Unit. This form does not constitute a complete DNAR order.

SECTION 13: FINANCIAL RESPONSIBILITY AND CGHS/INSURANCE DECLARATION

Payment Category _____ Scheme (CGHS / PMJAY / ESI / Insurance / Self-pay) _____

Insurance Company / TPA Name _____ Policy Number _____ Pre-authorisation Number _____

I acknowledge that estimated surgical costs have been communicated to me. I accept financial responsibility for all charges incurred during this hospitalisation including, but not limited to, surgeon fees, anaesthesiologist fees, OT charges, blood products, implants, intensive care charges, and post-operative medications. Non-payment does not affect my right to emergency treatment per Section 12 of the Clinical Establishments Act, 2010.

I understand that AIIMS, New Delhi operates under central government funding for BPL / Below Poverty Line patients and that patients eligible under PMJAY (Ayushman Bharat) may apply for cashless treatment under the applicable scheme.

SECTION 14: DECLARATION BY TREATING SURGEON / CONSULTANT

I hereby certify that I have explained to the patient / guardian (as applicable), in a language understood by them, the following:

1. The diagnosis and nature of the condition requiring surgical intervention.
2. The nature, purpose, and scope of the proposed surgical procedure.
3. The expected benefits of the procedure and the likelihood of success.
4. All material risks, complications, and side-effects — both general and procedure-specific — as detailed in Sections 5.1 to 5.4 of this form.
5. The available alternative treatments, including non-surgical management, and the consequences of refusal of the proposed procedure.
6. The patient's rights including the right to refuse treatment and seek a second opinion.

I confirm that the patient / guardian was given adequate time and opportunity to ask questions, and that all questions were answered to their satisfaction. No undue pressure or coercion was applied.

Surgeon/Consultant Full Name	Designation	Department

NMC/MCI Registration Number	Date	Time

_____

Surgeon / Consultant Signature

SECTION 15: INTERPRETER DECLARATION (IF APPLICABLE)

Complete this section if a language interpreter was used to explain the consent form.

Interpreter Full Name	Language Interpreted	Employee ID / Credential

I declare that I accurately and completely interpreted the contents of this consent form and the surgeon's explanations to the patient/guardian. I did not express personal opinion or omit any material information.

_____	_____
Interpreter Signature	**Date & Time**

SECTION 16: PATIENT / GUARDIAN DECLARATION AND SIGNATURE

I / We, the undersigned, declare as follows:

1. I have read, or had read to me, the entirety of this consent form, including all sections. I understand its contents and have had all my questions answered to my satisfaction.
2. I voluntarily and without coercion consent to the surgical procedure described in Section 4 and to any additional or modified procedures which the surgical team, in their clinical judgement, determine are necessary during the operation.
3. I consent to the administration of anaesthesia and to blood or blood product transfusion as detailed in Sections 6 and 7.
4. I understand that surgery involves risks, some of which may be serious or life-threatening, as described in Section 5, and I accept these risks.
5. I understand that no guarantee of a specific outcome has been given to me, and that the results of surgery depend on many factors beyond the control of the surgical team.
6. I understand that AIIMS, New Delhi is a teaching hospital and that supervised trainees may participate in my care, subject to my preferences stated in Section 10.
7. I have not taken any medication, alcohol, or substance that would impair my judgement and capacity to give this consent (or: this consent is given by my legal guardian because _____).
8. I am aware of my right to withdraw this consent at any time before the commencement of surgery, and I understand the consequences of such withdrawal.
9. I authorise AIIMS, New Delhi to retain, use, and share my de-identified medical information for purposes of clinical audit, quality improvement, and academic research, subject to applicable data protection laws.
10. I declare that the information provided in this form, including medical history, is true and accurate to the best of my knowledge, and I accept responsibility for any consequences arising from incomplete or incorrect information.

Full Name of Patient / Guardian	Date	Time
_____	_____	_____

_____ _____

Patient Signature / Left Thumb Impression **Guardian Signature (if patient unable)**

If Left Thumb Impression used, state reason: _____

SECTION 17: WITNESS SIGNATURES

Two witnesses must sign. Witnesses confirm they were present during the consent discussion and signing and that the patient/guardian appeared to be of sound mind and acting voluntarily.

Witness 1 Full Name	Relationship to Patient	Contact Number

Witness 2 Full Name	Relationship to Patient	Contact Number

_____ _____

Witness 1 Signature & Date **Witness 2 Signature & Date**

SECTION 18: EMERGENCY EXCEPTION DOCUMENTATION

COMPLETE ONLY IF PATIENT IS UNABLE TO CONSENT AND GUARDIAN IS UNAVAILABLE

In cases of immediately life-threatening emergency where the patient is unconscious, incapacitated, or otherwise unable to consent, and where there is no time to locate the patient's legal guardian, a surgical procedure may proceed on the basis of the doctrine of necessity (in parens patriae principle as recognised in Indian law and upheld in Nikhil Soni v. Union of India, 2015 Raj HC). This must be documented by two senior doctors.

Nature of Emergency _____

Reason patient unable to consent _____

Efforts made to contact guardian (details) _____

Time of Emergency Decision _____

_____
Senior Doctor 1 Name, Designation & Signature

_____
Senior Doctor 2 Name, Designation & Signature

Police/Medico-Legal Case: [ ] Yes, Police intimated (FIR/DD No.: _____) [ ] No

SECTION 19: REVOCATION OF CONSENT

I, the patient/guardian named above, hereby REVOKE the consent previously given on the date and time stated, for the following reason:

I understand the clinical risks of withdrawing consent as explained to me by the treating surgeon:

_____ _____ _____

Patient/Guardian Signature & Date	Witness Signature & Date	Surgeon Countersignature & Date

SECTION 20: ADMINISTRATIVE AND PRE-OPERATIVE CHECKLIST

#	Item	Done (Y/N)	Initials / Time
1	All sections of consent form completed and signed		
2	Patient identity verified (Name + DOB + UHID)		
3	Surgical site / laterality verified and marked		
4	Consent explained in patient's language		
5	Pre-anaesthesia evaluation done and filed		
6	Relevant investigations reviewed (CBC, LFT, RFT, ECG, Coagulation, Imaging)		
7	Blood group and cross-match sample sent		
8	Blood products arranged and confirmed in blood bank		
9	Pre-operative medications given as prescribed		
10	WHO Surgical Safety Checklist – Sign In completed		
11	Implant / device consent signed (if applicable)		
12	Blood transfusion consent obtained		
13	Patient valuables secured and documented		
14	Allergy status confirmed and documented on drug chart		
15	Consent form filed in medical record		

SUMMARY SIGNATURE BLOCK

All parties below confirm that the consent process was completed in compliance with AIIMS policy, NMC guidelines, and applicable law.

Patient / Guardian	**Consultant Surgeon**	**Anaesthesiologist**
Witness 1	**Witness 2**	**OT Nurse / Coordinator**

ORIGINAL TO BE RETAINED IN HOSPITAL MEDICAL RECORD | COPY TO BE PROVIDED TO PATIENT / GUARDIAN

This document is governed by the laws of the Republic of India. Jurisdiction: District Court, New Delhi.